

25VECV01763 25VECV01763

County: los-angeles

Division: Civil Law and Motion

Department: W

Hearing date: 2026-07-13

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=NW%20%2CW%2C07%2F13%2F2026

Source SHA-256: b15a47696b87e3181a5be51f2944b1cf96925765afe6964c83f532143be2ecee

Case Number: 25VECV01763 Hearing Date: July 13, 2026 Dept: W

Judge _____

Department W

Hearing Date:

Monday, July 13, 2026

Case Name:

Jay Stein v.

Lionel Paul Levin, et al.

Case No.:

25VECV01763

MOTIONS

Motion to be Relieved as Counsel

Moving Party:

Plaintiff's Attorney Jacob Zadeh

Responding Party:

Plaintiff Jay Stein

Notice:

Proof of Service on June 8, 2026.

Documents:

Motion to be Relieved as Counsel –
6/8/26

Declaration of Jacob Zadeh in Support –
6/8/26

Proposed Order – 6/8/26

Plaintiff's Opposition – 6/29/26

Declaration of Jay Stein in Opposition –
6/29/26

Jacob Zadeh's Reply – 6/30/26

Ruling:

The Court

TENTATIVELY GRANTS Mr. Zadeh's Motion to be Relieved as Counsel, pending discussion at the hearing.

The Court

CONTINUES the Motion for Judgment on the Pleadings currently scheduled for August 26, 2026, to September 23, 2026.

Relevant

Background:

This is a legal

malpractice case. On September 21, 2021, Plaintiff Jay Stein hired Defendants Lionel Paul Levin, Elyse Margolin, and the firm Levin & Margolin to represent him in a marriage dissolution. Over time, Plaintiff and Defendants began to clash over the total anticipated costs of the litigation, as well as

Defendants' strategy, billing practices, and their handling of client funds.

After two years of litigation, Defendant Lionel Levin informed Plaintiff that he would be leaving the firm of Levin & Margolin. At this point, both Defendant Lionel Levin and Defendant Elyse Margolin moved to be relieved as Plaintiff's counsel. Both motions were granted, leaving Plaintiff without counsel just over two months before his dissolution trial.

On March 28, 2025, Plaintiff filed this suit against Defendants for legal malpractice. Plaintiff alleges five causes of action: 1) fraud; 2) breach of fiduciary duty; 3) professional negligence; 4) accounting; and 5) indemnity.

Now, Plaintiff's new attorney Jacob Zadeh, moves to be relieved as counsel, citing an irreparable breakdown in the attorney/client relationship.

Analysis:

Counsel Jacob Zadeh moves to be relieved as Plaintiff's counsel.

The requirements for a Motion to be Relieved as Counsel are outlined in CRC 3.1362. Moving counsel must: (1) submit form MC-051 - notice of the motion to the client, (2) submit form MC-052 - a declaration explaining why they could not acquire client's consent to withdraw, (3) submit form MC-053 – a copy of the proposed order, and (4) serve these documents and notice of the motion to both the client and all other parties in the case. (Cal. Rules of Court, rule 3.1362(a)-(e).) Additionally, relief cannot be granted if it is reasonably foreseeable that the client would suffer prejudice as a result of the withdrawal. (Mossanen v. Monfared (2000) 77 Cal.App.4th 1402, 1409.)

First, Mr. Zadeh has submitted Form MC-051, and has served Plaintiff with notice of this motion. (Motion to be Relieved, MC-051.) Second, Mr. Zadeh has submitted Form MC-052, stating that, "despite repeated efforts, there has been a breakdown in communication between counsel and client that has made effective representation unreasonably difficult." (Declaration in Support, ¶ 2.) Third, Mr. Zadeh

submitted a copy of the proposed order via Form MC-053. (Proposed Order, MC-053.) Fourth, Mr. Zadeh served these documents onto all parties in this case. (Mot. to be Relieved, Proof of Service, p. 2.) Thus, Mr. Zadeh has met all the procedural requirements under CRC 3.1362.

Finally, the Court must determine whether it is reasonably foreseeable that the client will suffer prejudice as a result of this withdrawal.

First, the Court notes that there are no imminent motions in this case. This motion is scheduled to be heard on July 13, 2026. The next substantive motion in this case is a motion for judgment on the pleadings, scheduled on August 26, 2026. Moreover, the trial is scheduled for April 19, 2027. Thus, Plaintiff, who is himself a lawyer, will have more than a month to acquire new counsel for the impending MJOP, and months to prepare for trial. These facts suggest that Plaintiff is unlikely to be prejudiced as a result of this withdrawal. However, in order to ensure that Plaintiff suffers no prejudice, the Court will CONTINUE the Motion for Judgment on the Pleadings currently scheduled for August 26, 2026, to September 23, 2026.

However, the Court notes that this motion is opposed by Plaintiff himself. In his Opposition, Plaintiff asserts that Mr. Zadeh has not spoken to Plaintiff in nearly eight months and has failed to return any of Plaintiff's phone calls. (Opp. p. 2:16-23.) Plaintiff also provides an unsworn declaration, where he states that the actual reason for Mr. Zadeh's withdrawal is that he, "just wants not to handle the lawsuit any longer." (Stein Decl. ¶ 2.) He also states that Mr. Zadeh gave him an ultimatum to either sign a substitution of attorney or he would withdraw. (Id. ¶ 3.)

In response to these claims, Mr. Zadeh submits a supplemental sworn declaration in reply. There, he states that, "Plaintiff's opposition asks the Court to deny the motion on the asserted basis that

my stated reason is false, and it invites me to respond with a detailed account of my communications, or asserted lack of communications, with Plaintiff." (Reply, Zadeh Decl. ¶ 3.) However, Mr. Zadeh explains that he cannot produce this detailed account

without violating his duty of confidentiality. (Ibid.) Thus, Mr. Zadeh offers to provide the Court with further information, in an in-camera hearing. (Id. ¶ 4.)

Thus, the Court is faced with two competing declarations. However, only Mr. Zadeh's declaration is sworn. Thus, the Court's tentative inclination is to grant this motion, and continue next month's Motion for Judgment on the Pleadings. However, the Court will reserve its ruling until after the hearing, as it intends to hear from both Plaintiff and from Mr. Zadeh in-camera.

For these reasons, the Court TENTATIVELY GRANTS Mr. Zadeh's Motion to be Relieved as Counsel, pending discussion at the hearing.

The Court also CONTINUES the Motion for Judgment on the Pleadings currently scheduled for August 26, 2026, to September 23, 2026.

Conclusion:

The Court TENTATIVELY GRANTS Mr. Zadeh's Motion to be Relieved as Counsel, pending discussion at the hearing.

The Court CONTINUES the Motion for Judgment on the Pleadings currently scheduled for August 26, 2026, to September 23, 2026.